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Supreme Court, U.S.

F I L E D

MAY 17 1996

CLERK

No. 95-1735

IN THE SUPREME COURT OF THE UNITED
STATES

OCTOBER TERM, 1995

COMMONWEALTH OF PENNSYLVANIA,
Petitioner
V.

RANDY LEE KILGORE,
Respondent

On Petition for Writ of Cer-
tiorari to the Supreme Court
of Pennsylvania

RESPONDENT'S BRIEF IN OPPOSITION

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for Respondent

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COUNTERSTATEMENT OF QUESTION
PRESENTED

Where the owner of a vehicle is in custody, the vehicle is on private land under police control, police are available to get a warrant, there is no urgency to search the vehicle, and the owner fails to consent to a search, may police search the vehicle without a warrant?

COUNTERSTATEMENT OF THE CASE

The pickup truck in question was parked in a private driveway. Police saw defendant (owner) and Kelly Kilgore walk "toward" the truck, not "to" it. Police then lost sight of the couple for up to five minutes. There was no known entry or touching of the truck. Outbuildings were adjacent to it.

After a team of at least three police raided property, and took the defendant into custody, and had all residents and everything under control, they searched the truck and found cocaine in the bottom of a McDonald's cup not in plain view.

The Supreme Court of Pennsylvania suppressed the cocaine because there were no exigent circumstances justifying searching the truck without a warrant.

Petitioner is attempting to torture this decision into saying that the police may never make a warrantless search of an vehicle .

REASON FOR DENYING WRIT

COMMONWEALTH'S ARGUMENT TURNS THE HOLDING OF THE PENNSYLVANIA SUPREME COURT INTO A SWEEPING ABROGATION OF THE AUTOMOBILE EXCEPTION TO THE WARRANT REQUIREMENT, WHICH IT IS NOT. BECAUSE OF ITS UNIQUE FACTS, THIS CASE FALLS OUTSIDE THE AUTOMOBILE EXCEPTION IN THAT IT DOES NOT INVOLVE A CONSENT SEARCH, PLAIN VIEW, SUDDEN ENCOUNTER AND STOP, OR SEARCH INCIDENT TO ARREST. VEHICLES ARE NOT PER SE SEARCHABLE WITHOUT A WARRANT.

Most of the cases Commonwealth cites involve sudden encounter and stop (Johns, Thomas and Ross), or exigent circumstances (Carney) or plain view (White). The present

case simply falls outside the recognized exceptions to the warrant requirement, and therefore a warrant is required.

Commonwealth is attempting to make the automobile exception apply to all automobiles, per se, regardless of circumstances. An automobile is not a talisman in whose presence the Fourth Amendment fades away.

CONCLUSION

The writ should be denied.

Respectfully submitted,

Allen H. Smith, Esq.

Counsel of Record for

Respondent